

5	Lopez vs. Trans Pak, Inc. 2024-01437506	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Further Responses to Form Interrogatories Continued to 09/14/2026
6	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Demurrer to Complaint Continued to 08/24/2026
7	Menon vs. Memorial Care Saddleback Medical Center 2024-01379144	1. Motion for Summary Judgment and/or Adjudication Defendant Robert Day, M.D.'s ("Defendant") Motion for Summary Judgment is granted. Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon ("Minor," collectively, "Plaintiffs"), assert causes of action for medical negligence and negligent infliction of emotional distress against Defendant. With respect to the moving defendant, Plaintiffs allege Defendant was negligent in the "prenatal, labor and delivery and post-delivery care of" Minor and Devi; that Minor "suffered severe and irreversible brain damage and additional physical injuries that currently require daily dialysis treatments and a feeding tube on year post-birth"; and, Devi "suffered severe pain, suffering, and emotional distress." (Compl. at pp. 4-5, ¶ GN-1.) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are "entitled to recover for this emotional distress" pursuant to Thing v. La Chusa (1989) 48 Cal. 3d 644." (Compl. at p. 7, ¶ GN-1.) Defendant moves for summary judgment as to every negligence claim against him on the grounds that: [1] he at all times complied with the applicable standard of care; [2] his conduct was not a substantial factor in causing any of the alleged damages; and, [3] a bystander theory of negligent infliction of emotional distress fails without the existence of any underlying, independently actionable tort. (ROA 83 [Not. of Mot. at p. 2].) Summary Judgment Standard "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie